# Development of Psychiatric Injury

The development of negligence through five leading cases. An introductory guide to the law of England and Wales, with the historical facts and outcomes clarified.

## 1. From physical impact to injury caused by experience

A person can become seriously ill after a frightening event even without being struck or physically wounded in the accident. The historical question was whether negligence could recognise an injury produced through what the claimant saw or heard. The cases below show both the expansion of recovery and the limits on it.

**Psychiatric injury** means a medically recognised psychiatric illness, not simply ordinary distress, fear or grief. Older judgments use the expression **nervous shock**. Some early cases involved bodily consequences of fright as well as psychological symptoms; they should not all be described as cases of illness with no physical consequences. [1]

## 2. Victorian Railways Commissioners v Coultas (1888)

**Facts:** A railway gatekeeper negligently allowed a horse-drawn buggy onto a level crossing when a train was approaching. Mrs Coultas narrowly escaped a collision. The fright caused illness, although the train had not struck her or the buggy.

**Outcome:** The Privy Council rejected the claim. It treated injury produced by fright without physical impact as too remote. **Why it matters:** This illustrates the restrictive historical approach. It is not the modern rule that a claimant must first suffer a separate physical injury. Coultas itself included physical symptoms following the fright. [1, 2]

## 3. Dulieu v White & Sons [1901] 2 KB 669

**Facts:** A pregnant woman was working behind the bar of a public house. The defendants' employee negligently drove a horse-drawn van into the building. She feared for her own safety and alleged serious illness and premature childbirth following the shock. This was a **premature birth**, not a miscarriage.

**Outcome:** The court held that the alleged facts disclosed a legally valid cause of action. The claim could proceed despite the absence of physical impact. Fear of fraudulent claims was not sufficient reason to reject genuine cases as a whole. This ruling concerned the legal sufficiency of the claim, not a final assessment of damages. [1, 2]

> **The first change:** A blow to the body is not essential. What a person sees or hears can cause legally relevant injury. In Dulieu, the claimant's fear concerned danger to herself.

# Fear for others and limits

## 4. Hambrook v Stokes Brothers [1925] 1 KB 141

**Facts:** A lorry was left unattended at the top of a steep street and rolled downhill. A mother saw it travelling towards the place around a bend where her children had gone ahead. She feared for their safety. She did not see the lorry strike a child; one of her children was in fact injured.

The mother suffered severe shock, subsequently had a miscarriage and died. Her husband brought the proceedings arising from her death. The important distinction was between fear for **herself** and fear for **her children**, not simply whether she had witnessed the exact moment of impact.

**Outcome:** The Court of Appeal majority allowed the husband's appeal and ordered a new trial. Injury caused by reasonable fear for the children's safety could support liability. The claimant's side therefore succeeded on the legal point; this was not an automatic final damages award. [1, 2]

> **The second change:** The law could recognise injury caused by fear for a loved one. In modern terminology, this helps explain the development of claims by **secondary victims**. A secondary victim claims for their own illness, not for the other person's injuries.

## 5. Bourhill v Young [1943] AC 92

**Facts:** A pregnant woman had got off a tram when a motorcyclist collided with a car and was killed. She heard the collision but did not see it. She was not endangered and knew none of those involved. Afterwards she approached the scene and saw blood on the road. She alleged shock, injury and a later stillbirth.

**Outcome:** Her claim failed in the House of Lords. Injury by shock to a person in her position was not reasonably foreseeable, so the rider owed her no relevant duty of care. The case came from Scotland and became an important authority in the wider development of negligence. [1, 3]

**Important qualification:** The trial judge did not find that the shock had caused the stillbirth. Do not present that causal connection as an established finding. Nor did the decision restore a universal physical-impact requirement: the central issue was a duty to this claimant. [3]

**Compare:** Hambrook concerned a mother's fear for her children. Bourhill concerned a stranger who was neither personally endangered nor connected to anyone in the accident. Serious distress alone does not establish a duty.

# The immediate aftermath

## 6. McLoughlin v O’Brian [1983] 1 AC 410

**Facts:** Mrs McLoughlin was at home when her husband and children were involved in a road collision caused by negligence. A neighbour told her about the accident roughly an hour later. She went to hospital, learned that a daughter had died and saw her injured family still distressed and covered in dirt and oil from the accident.

She developed psychiatric illness, including depression. She had not witnessed the collision. Her case depended on her own direct experience of its **immediate aftermath**, rather than merely receiving news of an accident.

**Outcome:** The House of Lords unanimously allowed her appeal and held that she could recover. The family relationship, closeness in time and place, and direct perception of the aftermath brought her within the scope of the duty. The hospital was not automatically too far removed from the accident. [1, 4]

## 7. Three connections to examine

**Relationship:** Who was injured or endangered, and how close was the claimant to that person? **Time and place:** Did the claimant encounter the accident or its immediate aftermath? **Perception:** Did the claimant personally see or hear the relevant event or aftermath, or simply learn about it from someone else?

> **Do not turn the case into a stopwatch rule:** McLoughlin does not mean that every hospital visit, every parent or every event within a fixed number of hours qualifies. The condition of the family and the connection with the accident mattered.

## 8. A historical development, not unlimited recovery

A **primary victim**, in the ordinary accident setting, is personally involved and exposed to physical danger. A **secondary victim** suffers injury through experiencing danger or harm to another. These categories have different requirements; this guide introduces the distinction rather than stating a complete test.

Later authorities, including *Alcock* and *Paul v Royal Wolverhampton NHS Trust* [2024] UKSC 1, clarify and limit secondary-victim claims. In *Paul*, witnessing a relative’s death from an untreated medical condition did not fall within the established accident-based exception. Do not assume that any traumatic family experience creates liability. [1, 5]

**Method:** Identify the illness, the person to whom a duty is alleged, the claimant’s connection with the accident, and causation. Sympathy for a claimant cannot replace those legal questions.

# Check your understanding

**1. Must the defendant's vehicle hit the claimant?**
Answer: No. Dulieu recognised a valid claim based on injury caused through fright without physical impact.

**2. Why is Hambrook different from Dulieu?**
Answer: Dulieu involved fear for the claimant's own safety. Hambrook accepted that fear for the children's safety could also support liability. The husband won the appeal; a new trial was ordered.

**3. Did Bourhill fail simply because psychiatric injury was never compensable?**
Answer: No. The relevant injury to a person in her position was not reasonably foreseeable. There was no relevant duty to her.

**4. Did Mrs McLoughlin recover merely because she was told about the accident?**
Answer: No. She directly encountered its immediate aftermath at hospital. The family ties and closeness to the event were important.

**5. Invented example: a stranger reads about an accident online and develops a diagnosed illness. Is diagnosis enough?**
Answer: No. A diagnosis addresses the kind of harm. A duty to this claimant and the applicable limits on recovery must still be established.

## Case sequence

**Coultas:** restrictive approach without impact. **Dulieu:** injury through fear for oneself can be actionable. **Hambrook:** fear for children can qualify. **Bourhill:** foreseeability limits the duty. **McLoughlin:** direct experience of the immediate aftermath can qualify.

## Sources and further reading

[1] *Paul v Royal Wolverhampton NHS Trust* [2024] UKSC 1, especially paras 26-37 (historical cases) and the majority's analysis of accident cases. UK Supreme Court judgment.

[2] Lord Briggs, *Liability for Mental Injury*, 19 January 2024, paras 6-10; discussing *Coultas* (1888) 13 App Cas 222, *Dulieu* [1901] 2 KB 669 and *Hambrook* [1925] 1 KB 141. Supreme Court lecture.

[3] *Bourhill v Young* [1942] UKHL 5; [1943] AC 92, particularly Lord Thankerton on the facts and the duty of care. [4] *McLoughlin v O'Brian* [1982] UKHL 3; [1983] 1 AC 410. [5] *Alcock v Chief Constable of South Yorkshire Police* [1992] 1 AC 310.

The bracketed report years for Bourhill (1943) and McLoughlin (1983) differ from the years in which the judgments were delivered (1942 and 1982).